VIANU

TEMPLATE: WORKS AGREEMENT FOR THE PILOT WITH VIANU

How to use this

This text is a starting point for the discussion with your works council. Fill in the passages in square brackets for your company. Whether the pilot needs a works agreement is for the company and the works council to clarify in each case.

Between

[Company name, address] (the "Employer")
and
[Name of the works council] (the "Works Council")
the following agreement is made.

1. Purpose

The Employer runs a pilot with custom-made insoles from VIANU. The pilot should show whether the insoles make a difference for the employees who take part. The insoles are a supplementary comfort offer. They do not replace any protective measure or workplace design.

2. Scope

This agreement applies to [site, department or group] and to up to 10 employees.

3. Voluntary participation

Taking part is voluntary. Anyone who does not take part has no disadvantages. Anyone who takes part can end their participation at any time, without giving reasons and without disadvantages. Photos that have not yet been deleted at that point are deleted on request.

4. Process

a) The Employer decides which employees can take part.
b) The employees who take part photograph their feet with their own smartphone during a break. Each foot capture needs 6 photos. There is no measurement day and there are no additional devices.
c) With the technology partner SELFWEAR AI the feet are measured and modeled as a personal insole. VIANU makes a custom-made insole for each person who takes part by 3D printing, locally in Germany. Name and company logo are printed on it.
d) The insole reaches the employees at the workplace, at the latest 7 days after the foot capture.
e) The insole goes into shoes the employees already own.
f) The employees pay nothing. The Employer bears the cost.

5. Data processing

The data protection concept (Appendix 1) sets out which data is created, where it is processed and how long it is stored. The photos are processed in the EU, used only to make the insole and deleted after production. The Employer receives no photos of the employees. Participants can ask VIANU for

information about their data at any time. Processing by VIANU is governed by the data processing agreement (Appendix 2).

6. Results report

At the end of the pilot the Employer receives an anonymized report at group level. The participants answer four questions themselves, among others: wear rate, noticeable improvement, recommendation and appreciation. The values are self-reported. The report shows values only for the whole pilot group. The report contains no statements about individual persons. The Employer knows the list of participants.

7. Performance and conduct monitoring

The Employer does not use the data and results of the pilot for performance or conduct monitoring.

8. Rights of the Works Council

The Works Council receives this agreement with its appendices and the results report at the same time as the Employer. It can put questions about the process and data protection to the Employer and to VIANU.

9. Term and end

The agreement applies from [date]. The pilot ends when the results report is handed over. [Period until evaluation: to be set.] After that the Employer decides together with the Works Council whether more teams take part.

10. Final provisions

Changes and additions require written form. If a provision is invalid, the rest of the agreement stays valid.

Place, date
For the Employer: _____
For the Works Council: _____

Appendix 1: Data protection concept (file "data-protection-concept.txt")
Appendix 2: Data processing agreement (file "data-processing-agreement-template.txt")